Historical source

Encyclopaedia Britannica scan, source row 2479. Parse 3.5 extracted the text. Super 3.5 VL corrected it from an enlarged crop of each block. It can still contain recognition errors. Page headers, footers, and page numbers are removed.

Untitled continuation (E0246)

Continues an entry from an earlier page.

extinguishable barely by the debtor's retiring or cancelling them, the pursuer, before a proof of the tenor is admitted, must condescend on such a casus amissionis, or accident by which the writing was destroyed, as shews it was lost when in the creditor's possession; otherwise bonds that have been cancelled by the debtor on payment, might be reared up as still subsisting against him: But in writings which require contrary deeds to extinguish their effect, as obligations, dispositions, charters, &c. it is sufficient to libel that they were lost, even casu fortuito.

Regularly, no deed can be revived by this action, without some admissible in writing, referring to that which is libelled; for no written obligation ought to be raised up barely on the testimony of witnesses. If these admissibles afford sufficient conviction, that the deed libelled did once exist, the tenor is admitted to be proved by witnesses, who must depose, either that they were present at signing the deed, or that they afterwards saw it duly subscribed. Where the relative writings contain all the substantial clauses of that which is lost, the tenor is sometimes sustained without witnesses. In a writing which is libelled to have contained uncommon clauses, all these must appear by the admissibles. Actions of proving the tenor are, on account of their importance, appropriated to the court of Session; and, by the old form, the testimony of the witnesses could not be received, but in presence of all the judges.

24. The action of double or multiple pointing may be also reckoned declaratory. It is competent to a debtor, who is dilcrcfled, or threatened with dilcrcfs, by two or more persons claiming right to the debt, and who therefore brings the several claimants into the field, in order to debate and settle their several preferences, that so he may pay securely to him whose right shall be found preferable. This action is daily pursued by an arrestree, in the case of several arrestments used in his hands for the same debt; or by tenants in the case of several adjudgers, all of whom claim right to the same rents. In these competitions, any of the competitors may bring an action of multiple-pointing in name of the tenants, or other debtors, without their consent, or even though they should disclaim the proceeds; since the law has introduced it as the proper remedy for getting such competitions determined. And while the subject in controversy continues in medio, any third person who conceives he has a right to it, may, though he should not be cited as a defender, produce his titles, as if he were an original party to the suit, and will be admitted for his interest in the competition.

25. Certain actions may be called accessory, because they are merely preparatory or subservient to other actions. Thus, exhibitions ad deliberandum, at the instance of an heir against the creditors or custodiers of his ancestor's writings, are intended only to pave the way for future process. An action of transference is also of this sort, whereby an action during the pendency of which the defender happens to die, is craved to be transferred against his representative, in the same condition in which it stood formerly. Upon the pursuer's death, his heir may intil in the cause against the defender, upon producing, either a retour or a confirmed testament, ac-

cording as the subject is heritable or moveable. Transferences being but incidental to other actions, can be pronounced by that inferior judge alone before whom the principal cause depended; but, where the representatives of the deceased live in another territory, it is the supreme court which must transfer. Obligations may be now registered summarily after the creditor's death; which before was not admitted, without a separate process of registration, to which the granter was necessarily to be made a party.

26. A process of wakening is likewise accessory. An action is said to sleep, when it lies over, not inflicted in for a year, in which case its effect is suspended; but even then it may, at any time within the years of prescription, be revived or wakened by a summons, in which the pursuer recites the last step of the process, and concludes that it may be again carried on as if it had not been discontinued. An action that stands upon any of the inner-house rolls cannot sleep; nor an action in which decree is pronounced, because it has got its full completion: Consequently the decree may be extracted after the year, without the necessity of a wakening.

27. An action of transumpt falls under the fame clais. It is competent to those, who have a partial interest in writings that are not in their own cullody, against the poffeffors thereof, for exhibiting them, that they may be tranfumed for their behoof. Though the ordinary title in this process be an obligation by the defender to grant tranfumpts to the pursuer, it is sufficient if the pursuer can fhew that he has an interest in the writings; but, in this case, he must tranfume them on his own charges. Actions of transumpt may be purfued before any judge-ordinary. After the writings to be tranfumed are exhibited, full duplicates are made out, collated, and figned, by one of the clerks of court, which are called tranfumpts, and are as effectual as an extract from the register.

28. Actions proceeded anciently upon brieves issuing from the chancery, directed to the judiciary or judge-ordinary, who tried the matter by a jury, upon whole verdict judgment was pronounced. And to this day, we retain certain brieves, as of inquest, terce, idocry, tutory, perambulation, and perhaps two or three others: But summonses were, immediately upon the institution of the College of Justice, introduced in the place of brieves. A summons, when applied to actions pursued before the session, is a writ in the King's name, issuing from his signet upon the pursuer's complaint, authorizing messengers to cite the defender to appear before the court, and make his defences; with certification if he fail to appear, that decree will be pronounced against him in terms of the certification of the summons.

29. The days indulged by law to a defender, between his citation and appearance, to prepare for his defence, are called inducia legales. If he is within the kingdom, twenty one and fix days, for the first and second diets of appearance, must be allowed him for that purpose; and if out of it, sixty and fifteen. Defenders residing in Orkney or Zetland must be cited on forty days. In certain summonses which are privileged, the induciae are shortened: Spuilzies and ejections proceed on fifteen days; wakening

Source record

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